

D. DISCOVERY REFEREE

The Court is becoming concerned regarding the number of the discovery disputes and scope of issues in this matter, as well as counsel's pattern of failing to engage in meaningful meet and confer or to reach informal resolutions thereon. This is the third motion relating to discovery set for hearing in the last 40 days. The parties' consistently reference, through their briefs, separate federal litigation between them related to a previous fire when arguing in support of or in opposition to a party's respective entitlement to certain materials and information. The present motion requires review of a voluminous number of documents. There are 57 discovery requests at issue. The moving and opposing papers include separate statements consisting of a combined 240 pages and declarations consisting of 733 pages. Although resolution of the legal issues underlying the discovery requests are not complex, unsettled, or matters of first impression, limited judicial resources make these discovery inquiries inordinately time-consuming. (*Id.* at 106.) Napa County Superior Court is a small court consisting of seven judges. The civil department consists of two judges, one of whom is recused in this matter. In addition to the present motion, issues raised at the July 21, 2026 hearing on Federal's previous discovery motion, including Plaintiffs' counsel's representations regarding the amount of time that code-compliant supplemental responses might reasonably take, does not give the Court confidence that the present string of discovery disputes is the last that may arise between the parties.

Where the parties do not consent, section 639 permits the Court to appoint a Discovery Referee upon a finding that "the exceptional circumstances of the particular case require the appointment." (Rules of Court, Rule 3.920.) Pursuant to the holding in *Taggares v. Super. Ct.* (1998) 62 Cal.App.4th 94, a trial court must find the majority of the following factors when considering reference in a discovery context: "(1) there are multiple issues to be resolved; (2) there are multiple motions to be heard simultaneously; (3) the present motion is only one in a continuum of many; (4) the number of documents to be reviewed (especially in issues based on assertions of privilege) make the inquiry inordinately time-consuming". (*Id.* at 105.)

As noted above, this motion is one in a continuum of many and there appear to be multiple issues involved. While the Court is not prepared to appoint a discovery referee at this juncture, counsel are urged to consider whether their current approach to discovery is in the best interest of the parties.

Based on the foregoing, the parties are encouraged to meet and confer regarding the appointment of a discovery referee pursuant to section 638. Upon any agreement, the parties may submit a stipulation and proposed order.

.....
JPMorgan Chase Bank N.A. v. Deborah L Paniagua

25CV001227

**MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF
STIPULATED SETTLEMENT**

TENTATIVE RULING: The motion is GRANTED. The Court will sign the Proposed Order and Proposed Judgment.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff JPMorgan Chase Bank, N.A. moves, pursuant to Code of Civil Procedure 664.6, for an order to vacate the dismissal and for entry of judgment under terms of the stipulated settlement.

The Court finds good cause for entering judgment based on the Parties' stipulated settlement, filed August 19, 2025, this Court's Order of August 22, 2025, and the Declaration of Smita Suman filed in support of the instant motion (Suman Decl.). (See *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1183 [entering appealable judgment on trial court order, entered after dismissal, that finally determined the rights of the parties in the action].) No opposition appears in the Court's file.

.....
Alexander Rowland et al v. Newco Capital Group LLC et al

25CV002471

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The matter is CONTINUED to September 09, 2026, at 8:30 a.m. in Dept. B. Moving counsel is directed to provide code-compliant notice of the continued hearing to all parties.

The Court is without jurisdiction to consider the Motion to be Relieved as Counsel. First, the Declaration of Counsel states that the Notice of Motion and moving papers were served by Mail and email. (See *id.* at ¶ 3.) However, the proof of service attached thereto states that service was accomplished only by email. Second, the proof indicates service was made on July 17, 2026, which is insufficient notice of the hearing pursuant to Code of Civil Procedure section 1005, subdivision (b). (See *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 ["The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question"].) Applicant is to provide adequate notice of the continued hearing.

.....